

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Samuel Ross	Team: Squad #01	CCRB Case #: 201603317	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Saturday, 04/09/2016 2:30 AM	Location of Incident: § 87(2)(b); Brooklyn Central Booking	18 Mo. SOL 10/9/2017	Precinct: 84		
Date/Time CV Reported Sat, 04/09/2016 7:54 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 04/18/2016 11:01 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Armando Cardenio	19358	925028	084 PCT
2. POM Daniel Sandberg	14067	947456	084 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Jianping Zeng	05639	942743	BKLN CT
2. POM Jamal Skinner	29034	942558	084 PCT
3. SGT Linda Doonerhornick	02451	920229	BKLN CT
4. CPT Kenneth Perez	00000	933168	077 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Armando Cardenio	Abuse: En route to § 87(2)(b) in Brooklyn, Police Officer Armando Cardenio did not obtain medical treatment for § 87(2)(b)	A . Unsubstantiated
B . POM Armando Cardenio	Abuse: En route to § 87(2)(b) in Brooklyn, Police Officer Armando Cardenio recorded video of § 87(2)(b) on his personal cell phone.	B . Substantiated
C . POM Armando Cardenio	Discourtesy: At § 87(2)(b) in Brooklyn, Police Officer Armando Cardenio spoke discourteously to § 87(2)(b)	C . Unsubstantiated
D . POM Daniel Sandberg	Force: At Brooklyn Central Booking, Police Officer Daniel Sandberg used physical force against § 87(2)(b)	D . Unsubstantiated
E . POM Armando Cardenio	Force: At Brooklyn Central Booking, Police Officer Armando Cardenio used physical force against § 87(2)(b)	E . Unsubstantiated
F . POM Armando Cardenio	Force: At Brooklyn Central Booking, Police Officer Armando Cardenio used a chokehold against § 87(2)(b)	F . Unsubstantiated
G . POM Armando Cardenio	Force: At Brooklyn Central Booking, Police Officer Armando Cardenio restricted § 87(2)(b) breathing.	G . Unsubstantiated
H . POM Daniel Sandberg	Force: At Brooklyn Central Booking, Police Officer Daniel Sandberg used physical force against § 87(2)(b)	H . Unsubstantiated

Case Summary

This case was delayed by several factors. This case was received at the CCRB on April 18, 2016. On April 19, 2016, the undersigned investigator contacted § 87(2)(b) the sole victim, by telephone. He stated that he was in North Carolina and did not have plans to return to New York. On April 21, 2016, § 87(2)(b) was informed that the CCRB required a notarized, written statement detailing his complaint. § 87(2)(b) notarized statement was received on May 17, 2016, and he provided a phone statement on May 19, 2016. Additionally, documents from the 84th Precinct, requested on April 19, 2016, were not received until June 30, 2016. Lastly, HIPAA forms were mailed to § 87(2)(b) on May 18, 2016. As discussed in greater detail below, in *Potential Issues*, § 87(2)(b) became unresponsive and did not return the forms. However, he then contacted the undersigned on July 14, 2016 and stated that he had returned to New York. He scheduled an appointment complete HIPAA forms at the CCRB. However, § 87(2)(b) missed the scheduled appointment and has since become unresponsive, further delaying the investigation.

On April 9, 2016, Sgt. Linda Doonerhornick of Brooklyn Court Section reported this incident to IAB, where it was filed under original log #16-12593. It was then forwarded to the CCRB. On April 8, 2016, at approximately 5:25 PM, § 87(2)(b) was arrested at a Macy's department store, located at 422 Fulton Street, in Brooklyn, for § 87(2)(b). He was subsequently transported from the 84th Precinct stationhouse to Brooklyn Central Booking, where he arrived at approximately 9:37 PM. § 87(2)(b) complained of § 87(2)(b) symptoms, and at 2:30 AM on April 9, 2016, PO Armando Cardenio and PO Daniel Sandberg of the 84th Precinct responded to Brooklyn Central Booking to transport § 87(2)(b) to § 87(2)(b) for treatment.

PO Cardenio joined § 87(2)(b) and an unidentified EMT in the rear of the ambulance while PO Sandberg followed the ambulance in an RMP. En route to § 87(2)(b), when § 87(2)(b) asked the EMT for an oxygen mask, PO Cardenio allegedly prevented the EMT from providing § 87(2)(b) with the mask (**Allegation A**). PO Cardenio then allegedly recorded a video of § 87(2)(b) on his personal cell phone (**Allegation B**). At the hospital, when § 87(2)(b) was eating, PO Cardenio allegedly said to § 87(2)(b) "Hurry the fuck up" (**Allegation C**).

PO Cardenio and PO Sandberg then transported § 87(2)(b) to Brooklyn Central Booking by RMP. En route, § 87(2)(b) allegedly spat at both officers multiple through the metal grill dividing the front of the RMP from the rear. His saliva allegedly entered both officers' mouths. Upon arrival at Brooklyn Central Booking, the officers took § 87(2)(b) out of the RMP and walked him into the rear entrance of Brooklyn Central Booking, down a steep ramp. PO Sandberg allegedly tripped § 87(2)(b) with his leg (**Allegation D**), causing § 87(2)(b) to fall to the ground. PO Cardenio allegedly dragged § 87(2)(b) across the ground (**Allegation E**). PO Cardenio then straddled § 87(2)(b) and allegedly choked him for approximately five seconds (**Allegation F**), restricting his breathing (**Allegation G**), while PO Sandberg held § 87(2)(b) in place (**Allegation H**). The officers then brought § 87(2)(b) inside of Brooklyn Central Booking and lodged him in a cell. § 87(2)(b) was re-arrested for spitting on the officers and was charged with § 87(2)(b). Both officers were then transported to § 87(2)(b). Both PO Cardenio and PO Sandberg took one month of Line of Duty sick leave following the incident.

There is no video associated with this case.

Mediation, Civil and Criminal Histories

- This case was deemed unsuitable for mediation both because § 87(2)(b) was arrested and because he was out of state and had no plans to return.
- On July 11, 2016 the Office of the Comptroller informed the undersigned that no notice of claim has been filed in regards to this incident.

• [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint involving § 87(2)(b) § 87(2)(g) [REDACTED].
- PO Cardenio, who has been a member of the NYPD for sixteen years, has been a subject in one previous CCRB case. In case #200605243, it was alleged that PO Cardenio used the word “fuck” multiple times. That allegation was closed as unfounded.
- PO Sandberg, who has been a member of the NYPD for eight years, has been a subject in two previous CCRB cases. § 87(2)(g) [REDACTED] no allegations made against him have been substantiated.

Potential Issues

- As noted above, § 87(2)(b) did not sign HIPAA forms. On May 18, 2016, the forms were mailed to § 87(2)(b) with a pre-paid, self-addressed envelope. On May 24, 2016, § 87(2)(b) confirmed that he received the forms. On May 26, 2016 § 87(2)(b) stated that he was unsure when he would be able to send the form, as he could not pay for transportation to a notary public or for the notary public’s fee. On June 3 and 6, 2016 voicemail messages were left for § 87(2)(b) requesting an update on the HIPAA forms. On June 6, 2016 an email was sent. On June 10, 2016 another voicemail message was left, in which the undersigned explained that without HIPAA forms the investigation would not be able to obtain statements from the EMTs who witnessed some of the alleged misconduct. Additionally, another email was sent. Then, on June 10, 2016 the undersigned received a voicemail message from § 87(2)(b) who requested a return call but provided no update on the HIPAA forms. Later on June 10, 2016 and again on June 14, 2016 the undersigned left voicemail messages for § 87(2)(b) reiterating the importance of the HIPAA forms to the investigation. On June 23, 2016 a subsequent voicemail message was left, and another letter with enclosed HIPAA forms was sent. As noted above, on July 14, 2016, § 87(2)(b) contacted the undersigned and stated he was in New York. He scheduled an appointment for July 15, 2016 to complete HIPAA forms at the CCRB’s office. On the morning of July 15, 2016 the undersigned contacted § 87(2)(b).

§ 87(2)(b) who confirmed his scheduled appearance at the CCRB. However, § 87(2)(b) missed the appointment and did not call to cancel or reschedule. On July 15, 18, and 20, 2016, voicemail messages were left for § 87(2)(b) the last informed § 87(2)(b) that if § 87(2)(b) did not provide signed HIPAA forms to the CCRB by July 22, 2016, the case would be closed without statements from the EMTs in question. On July 18, 2016 a letter was mailed to § 87(2)(b) New York address, as provided in his initial complaint. § 87(2)(b) has not contacted the undersigned since July 14, 2016 and as of the writing of this report he has not provided signed HIPAA forms. For this reason, the investigation was unable to obtain § 87(2)(b) medical records or statements from FDNY § 87(2)(b) (Shield #§ 87(2)(b)) and FDNY § 87(2)(b) (Shield § 87(2)(b)) who transported § 87(2)(b) and PO Cardenio from Brooklyn Central Booking to § 87(2)(b) and who may have witnessed Allegation A and B en route.

- Also as noted above, a request for documents from the 84th Precinct, submitted on April 19, 2016, was not filled until June 30, 2016. Among the documents requested were Line of Duty Injury Reports and Exposure Reports for both PO Cardenio and PO Sandberg. According to both PO Cardenio (Board Review 01) and PO Sandberg (Board Review 02), Exposure Reports were prepared in regards to the incident. AIDED reports for both officers (Board Review 03 and 04) confirm that they were transported to § 87(2)(b) after reporting that a prisoner's saliva entered their mouths. Additionally, their memo books (Board Review 05 and 06) demonstrate that they both took Line of Duty sick leave for several weeks after the incident. However, according to the document request filled on June 30, 2016, the 84th Precinct has no Line of Duty Injury Reports or Exposure Reports on file for either PO Cardenio or PO Sandberg (Board Review 07). Additionally, both PO Cardenio and PO Sandberg declined to sign HIPAA forms on their advice of their counsel. Therefore, the investigation did not obtain any medical documentation for either officer.

Findings and Recommendations

Allegation A—Abuse of Authority: En route to § 87(2)(b) in Brooklyn, Police Officer Armando Cardenio did not obtain medical treatment for § 87(2)(b)

It is undisputed that PO Cardenio, § 87(2)(b) and one EMT rode in the rear of the ambulance en route from Brooklyn Central Booking to § 87(2)(b), and that PO Sandberg followed behind the ambulance in an RMP.

§ 87(2)(b) (Board Review 08) stated that PO Cardenio rode in the rear of the ambulance with him and one member of EMS personnel. En route to the hospital, § 87(2)(b) asked the EMT for an oxygen mask, as his § 87(2)(b) symptoms were causing him to feel short of breath. The EMT appeared as though he was going to give § 87(2)(b) an oxygen mask, but PO Cardenio told the EMT not to give the mask to § 87(2)(b). PO Cardenio did not provide any reason that § 87(2)(b) should not receive oxygen. The EMT did not give § 87(2)(b) the oxygen mask and explained that he could not do so because PO Cardenio instructed him not to. PO Cardenio laughed, and § 87(2)(b) said to him, “What the fuck is wrong with you?” § 87(2)(b) told PO Cardenio that he was in pain and needed help. He asked PO Cardenio why he had told the EMT not to give him oxygen, but PO Cardenio did not respond.

As noted above, the investigation was unable to obtain § 87(2)(b) medical records or a statement from the EMT who joined § 87(2)(b) and PO Cardenio in the rear of the RMP.

Allegation B—Abuse of Authority: En route to § 87(2)(b) in Brooklyn, Police Officer Armando Cardenio recorded video of § 87(2)(b) on his personal cell phone.

According to PO Cardenio, § 87(2)(b) insulted PO Cardenio and his family en route to the hospital, saying “Fuck you” and “Fuck your mother.” PO Cardenio took out his personal cell phone and began recording a video of § 87(2)(b) so that he would later have a document of § 87(2)(b) behavior. When PO Cardenio began recording a video, § 87(2)(b) stopped cursing. PO Cardenio explained that his cell phone – a Casio GZ-One – required him to press “save” in order to save a video recording; it did not save video recordings automatically. PO Cardenio did not press “save” to save the video and it was deleted when he closed the phone. However, he did not realize this at the time. PO Cardenio stated that later, when a Duty Captain interviewed him in regards to the incident, he attempted to show the video to the Duty Captain, believing he had saved it. However, the video was not saved on his phone, and PO Cardenio realized then that the video had not been saved to his phone.

NYPD Patrol Guide Procedure 203-06 (Board Review 09) states that officers are prohibited from using any personal electronic/digital device (e.g., cellular phone, camera, etc.) to record video and/or audio or to take photographs during any police encounter. Officers may only record encounters when prior supervisory authorization is obtained and when authorized Department technology is utilized. Law enforcement recordings are subject to preservation and discovery rules, and any such recordings must be promptly made available to the relevant prosecutor's office or the New York City Law Department.

§ 87(2)(g)

it is recommended that **Allegation B** be closed as **substantiated**.

Allegation C—Discourtesy: At § 87(2)(b) in Brooklyn, Police Officer Armando Cardenio spoke discourteously to § 87(2)(b)

§ 87(2)(b) stated that upon arrival at § 87(2)(b), PO Cardenio brought § 87(2)(b) inside and then escorted him to a hospital bed. PO Sandberg joined them there shortly thereafter. At some point while at the hospital, § 87(2)(b) said that he was hungry, and an unidentified member of the medical staff brought § 87(2)(b) a tray of food. Before § 87(2)(b) could finish eating, PO Cardenio took the tray from § 87(2)(b) and said, "Hurry the fuck up." No member of the medical staff was present when PO Cardenio said this.

PO Cardenio stated that after § 87(2)(b) was discharged, he complained that he was hungry. PO Cardenio told § 87(2)(b) that he and PO Sandberg would allow § 87(2)(b) to eat and wait for him. PO Cardenio believed that if § 87(2)(b) was happy he would be compliant and make the officers' jobs easier. A member of the hospital staff brought § 87(2)(b) food and the officers watched him eat. After approximately ten to fifteen minutes, PO Cardenio said to § 87(2)(b) "We need to leave." He did not recall if he said to § 87(2)(b) "Hurry the fuck up." PO Cardenio did not recall using any profanity toward § 87(2)(b) at the hospital or otherwise.

PO Sandberg did not remember if § 87(2)(b) requested food or ate while he and PO Cardenio were at the hospital. PO Sandberg also did not remember if either officer stated that that § 87(2)(b) was too slow or taking too long to do any activity. According to PO Sandberg, PO Cardenio did not say, "Hurry the fuck up" or use any other profanity.

It must be noted that during his CCRB interview, when describing his reaction to § 87(2)(b) allegedly spitting on the officers (addressed below), PO Cardenio stated that he said to PO Sandberg, "Fuck, this guy spit in my mouth." PO Cardenio also asked, during his interview, if he could use profanity on record in order to provide emphasis.

As noted above, § 87(2)(b) stated that no member of § 87(2)(b) staff witnessed the alleged discourtesy. PO Cardenio acknowledged telling § 87(2)(b) that it was time to leave the

hospital while § 87(2)(b) ate and did deny using profanity but rather did not recall whether or not he did so. Additionally, he used profanity during his CCRB interview. § 87(2)(g)

It is therefore recommended that **Allegation C** be closed as **unsubstantiated**.

Allegation D—Force: At Brooklyn Central Booking, Police Officer Daniel Sandberg used physical force against § 87(2)(b)

Allegation E—Force: At Brooklyn Central Booking, Police Officer Armando Cardenio used physical force against § 87(2)(b)

Allegation F—Force: At Brooklyn Central Booking, Police Officer Armando Cardenio used a chokehold against § 87(2)(b)

Allegation G—Force: At Brooklyn Central Booking, Police Officer Armando Cardenio restricted § 87(2)(b) breathing.

Allegation H—Force: At Brooklyn Central Booking, Police Officer Daniel Sandberg used physical force against § 87(2)(b)

§ 87(2)(b) stated that in the RMP en route from § 87(2)(b) to Brooklyn Central Booking, his § 87(2)(b) symptoms returned, and he coughed and sneezed while in the rear of the vehicle. PO Sandberg was driving and PO Cardenio rode in the front passenger's seat. PO Cardenio closed the window covering the partition between RMP's rear and front, leading § 87(2)(b) to believe that some particles of saliva from his coughs or sneezes might have struck the officers. He was unable to cover his mouth while coughing and sneezing because his hands were cuffed behind his back. § 87(2)(b) did not intentionally spit on the officers.

The RMP arrived outside of Central Booking approximately fifteen minutes later. PO Sandberg parked the RMP on the street outside of the Brooklyn Central Booking. § 87(2)(b) exited the rear of the RMP, and PO Sandberg and PO Cardenio walked § 87(2)(b) into an alleyway, leading to an entrance of Central Booking. § 87(2)(b) had been brought through the same alleyway, toward the same entrance, when he was earlier brought to Central Booking. He believed it was the entrance usually used for prisoners.

There was no one else in the alleyway at that time. It was not well lit. PO Sandberg walked on § 87(2)(b) right side and PO Cardenio walked on § 87(2)(b) left. PO Sandberg extended his left leg in front of § 87(2)(b) and § 87(2)(b) whose ankles were in shackles, tripped over it. § 87(2)(b) fell to the ground, landing on his chest and face. He did not sustain any injury to his face or head. He was not able to stop his fall because his hands were cuffed behind his back. PO Sandberg placed his foot on the shackles and said in a sarcastic tone, "Oops, he tripped over my foot." PO Cardenio said, "You tried to kick me?" PO Cardenio took hold of § 87(2)(b) ankles and dragged him to his right approximately three to four feet, toward the wall on the right side of the alleyway. § 87(2)(b) yelled for the officers to stop and that he had not kicked either officer or done anything wrong. PO Cardenio and PO Sandberg turned § 87(2)(b) over, so that he was lying on his back, with his hands underneath him. PO Cardenio stood over § 87(2)(b) straddling his body with one foot on either side. PO Cardenio took hold of § 87(2)(b) neck with both hands and choked § 87(2)(b) for approximately five seconds. This action restricted § 87(2)(b) breathing slightly. Meanwhile PO Sandberg was holding § 87(2)(b) legs still in order

to assist PO Cardenio. PO Cardenio said, “You want to spit on me?” § 87(2)(b) yelled, and PO Cardenio released his grip on § 87(2)(b) neck. PO Cardenio and PO Sandberg then lifted § 87(2)(b) to his feet and walked him inside.

According to § 87(2)(b) after he was lodged in a cell he felt pain on his left knee and rolled up his pants to discover that he was bleeding from a scrape there. He also discovered that he had a bloody scrape on his left shoulder. § 87(2)(b) believed that he sustained these scrapes when he was tripped, when he was dragged, or while he was being choked, but he was not exactly certain. Thereafter, PO Sandberg and PO Cardenio brought § 87(2)(b) to see an EMT, whom § 87(2)(b) informed of the scrapes on his left knee and shoulder. The EMT cleaned the scrapes and treated them with ointment.

On May 23, 2016 § 87(2)(b) provided two injury photos via email (Board Review 10). The photos appear to show scabbing, but the location of the scabbing cannot be determined and the photos do not show § 87(2)(b) face.

PO Cardenio stated that en route from § 87(2)(b) to Brooklyn Central Booking, PO Sandberg was the operator and PO Cardenio rode in the front passenger’s seat. § 87(2)(b) did not exhibit any § 87(2)(b) symptoms; he did not sneeze or cough; and he did not complain of § 87(2)(b) symptoms. The rear of the RMP was partitioned from the front by a metal grill. There was also a plastic cover which could slide across to cover the partition, but it was open. As the RMP turned from Boerum Place onto State Street, less than one block from Brooklyn Central Booking, PO Cardenio was facing PO Sandberg, to his left, and speaking to him. The left side of PO Cardenio’s face was turned toward § 87(2)(b) in the rear of the RMP. PO Cardenio felt something wet enter his mouth and land on the left side of his face, but he did not initially know what it was that he felt. PO Cardenio turned further to his left, toward the rear of the RMP, and saw § 87(2)(b) face near the partition. § 87(2)(b) was spitting repeatedly at both officers through the metal grill. § 87(2)(b) saliva projected from his mouth at PO Cardenio and then at PO Sandberg. § 87(2)(b) spat three or four times. PO Cardenio observed § 87(2)(b) saliva land on PO Sandberg’s face and enter his mouth. PO Cardenio closed the plastic sliding cover to seal the partition.

PO Sandberg parked the RMP on State Street, near the rear entrance to Brooklyn Central Booking. PO Cardenio and PO Sandberg brought § 87(2)(b) out of the RMP. He was not spitting at that time. PO Cardenio did not recall if either officer made any statement about § 87(2)(b) spitting. PO Cardenio was afraid that he could contract an illness from § 87(2)(b). According to PO Cardenio, he was not angry with § 87(2)(b) but he “wasn’t happy.” PO Sandberg did not express any anger toward § 87(2)(b). The officers walked with § 87(2)(b) into the rear entrance and then down the ramp into Brooklyn Central Booking. It was a steep ramp, between 15 and 30 degrees in grade, and approximately 100 feet long. § 87(2)(b) stiffened his body and refused to walk of his own power. The officers had their arms interlocked with his and walked forward, guiding § 87(2)(b) forward with them. PO Cardenio was on § 87(2)(b) left side and PO Sandberg was on § 87(2)(b) right side. The officers brought § 87(2)(b) halfway down the ramp in this manner. PO Cardenio was distracted because he was thinking about having § 87(2)(b) spit in his mouth.

Suddenly PO Cardenio felt himself pulled down to the ground by § 87(2)(b) who also fell to the ground. PO Cardenio did not see what caused § 87(2)(b) to fall to the ground. PO Cardenio did not see PO Sandberg extend his leg in front of § 87(2)(b) in order to intentionally trip § 87(2)(b). PO Cardenio did not recall if PO Sandberg also fell to the ground. PO Cardenio did not hear PO Sandberg say, “Oops, he tripped over my foot” or make any other statement to that effect. PO Cardenio and § 87(2)(b) rolled once on the ground, down the ramp. PO Cardenio landed on top of § 87(2)(b). § 87(2)(b) was on his back and PO Cardenio was on his chest, on top of § 87(2)(b) so that they faced on another. Their faces were approximately six inches apart. PO Cardenio immediately felt concerned that due to his proximity to § 87(2)(b), § 87(2)(b) might be able to take hold of PO Cardenio’s firearm, located in his holster, on his duty belt. PO Cardenio pushed himself up from on top of § 87(2)(b) in the fastest manner he could: he place his hands on § 87(2)(b) chest and pushed himself up. His weight was on § 87(2)(b) chest for only as long as it took to push himself off of § 87(2)(b). PO Cardenio described this as a “moment”—a matter of one or two seconds. PO Cardenio did not recall if § 87(2)(b) shouted or screamed. Immediately after PO Cardenio pushed himself up off of § 87(2)(b), PO Cardenio and PO Sandberg picked § 87(2)(b) up by the shoulders and brought him to his feet. They then guided § 87(2)(b) into Brooklyn Central Booking.

According to PO Cardenio, he did not recall if § 87(2)(b) ever tried to kick him or PO Sandberg. PO Cardenio did not recall saying that § 87(2)(b) tried to kick him or PO Sandberg. PO Cardenio stated that neither he nor PO Sandberg pulled or dragged § 87(2)(b) across the ground. PO Cardenio never used a chokehold against § 87(2)(b). PO Cardenio never intentionally restricted § 87(2)(b) breathing. § 87(2)(b) never complained that PO Cardenio choked him or restricted his breathing. PO Sandberg never held § 87(2)(b) in place so that PO Cardenio could use any manner of force against § 87(2)(b).

PO Sandberg stated that en route from the hospital to Brooklyn Central Booking, he was the operator and PO Cardenio sat next to him in the front passenger’s seat. § 87(2)(b) sat in the rear. The majority of the drive, which lasted between ten and fifteen minutes, was uneventful. § 87(2)(b) was not sneezing, wheezing, or coughing. As they approached Brooklyn Central Booking, however, § 87(2)(b) then began to speak to the officers through the metal grill, calling the officers racist. When the RMP was one block away from Brooklyn Central Booking, PO Cardenio said to PO Sandberg that something had gotten in his mouth. PO Sandberg turned toward PO Cardenio, to his right, and saw that § 87(2)(b) in the rear, was spitting through the RMP’s partition at the officers. The spit entered PO Sandberg’s mouth and landed on his face. PO Sandberg saw § 87(2)(b) spit enter PO Cardenio’s mouth and land on PO Cardenio’s face. PO Cardenio slid the plastic cover across the partition.

PO Sandberg parked across from rear entrance to Brooklyn Central Booking. The officers exited and removed § 87(2)(b) from the RMP. As § 87(2)(b) exited, PO Sandberg placed his hand on the rear of § 87(2)(b) head, holding his head down slightly to make sure that he would not spit on the officers. However, when PO Sandberg saw that § 87(2)(b) was not spitting, he removed his hand from the rear of § 87(2)(b) head. PO Sandberg was not angry at § 87(2)(b) and did not express anger at § 87(2)(b). PO Cardenio did not express anger toward § 87(2)(b). PO Sandberg used his left hand to hold § 87(2)(b) by the right bicep but § 87(2)(b) shrugged PO Sandberg’s hand away. PO Sandberg then interlocked his left arm with § 87(2)(b) right, and

PO Cardenio held onto § 87(2)(b) left arm. PO Sandberg was on § 87(2)(b) right side and PO Cardenio was on § 87(2)(b) left side. PO Sandberg did not know how PO Cardenio was holding § 87(2)(b) left arm. § 87(2)(b) said to PO Sandberg, “Don’t touch me like that. I’m not a bitch.” The officers and § 87(2)(b) then began to descend the steep ramp toward the rear entrance of Brooklyn Central Booking. As they walked, § 87(2)(b) pulled away from the officers and jostled against them.

While walking down the ramp, § 87(2)(b) who was in shackles, suddenly tripped over PO Sandberg’s left foot. PO Sandberg was not sure exactly what caused § 87(2)(b) to trip. PO Sandberg stated that he did not extend his leg to intentionally trip § 87(2)(b). § 87(2)(b) fell to the ground. PO Sandberg stumbled slightly and PO Cardenio tripped over § 87(2)(b) landing on top of him. § 87(2)(b) was on his back and PO Cardenio was on top of him, facing downward so that they were face to face. PO Cardenio placed his hands on § 87(2)(b) chest and immediately pushed himself up, off of § 87(2)(b) chest, lifting himself up. PO Cardenio never placed his hands on § 87(2)(b) neck. PO Cardenio never used a chokehold against § 87(2)(b) and never restricted § 87(2)(b) breathing intentionally. PO Sandberg never held § 87(2)(b) in place while PO Cardenio used a chokehold. § 87(2)(b) said, “Get off me” as PO Cardenio lifted himself up. PO Cardenio never pulled or dragged § 87(2)(b) across the ground. Once PO Cardenio was up, the officers immediately lifted § 87(2)(b) to his feet. PO Sandberg did not observe any scrapes to § 87(2)(b) knee or shoulders. The officers then brought § 87(2)(b) inside.

PO Cardenio prepared a detailed memo book entry in regards, which reads as follows: “0537 1 MP [male perp] § 87(2)(b) to Brooklyn Central Booking perp very combative resist orders from Brooklyn Central Booking intake 0550 perp spits in my mouth and Sandberg Perp very combative pushing down Brooklyn Central Booking ramp trips over Sandberg dragging me over him I land on top + push away because of gun.” It then reads, “0700 Lt. Brown on scene + PO Barnes Taken to § 87(2)(b) + Blood/medicine Duty Cpt. Interview 1220 EOT [end of tour].” As noted above, PO Cardenio’s memo book is marked “LOD” – Line of Duty injury sick leave – for each day from April 10, 2016 to May 3, 2016.

PO Sandberg also prepared a detailed memo book entry, which reads: “0253 Transport § 87(2)(b) § 87(2)(b) highly aggressive in BCS [Brooklyn Court Section] and walking to RMP 0315 10-84 @ § 87(2)(b) prisoner again highly aggressive @ hospital 0537 10-98 Transport back Brooklyn Central Booking 0550 Prisoner highly aggressive Spit in both mine/Cardenio (19358) face/mouth and when walking down to BCB on the ramp, prisoner tripped over mine [sic] left foot because he kept pushing and trying to get away from us. As a result caused Cardenio to trip over him and PO Cardenio fell on top of prisoner then used prisoners chest to get up from being on top of prisoner when we were able to get prisoner up walked into BCB Brooklyn Central Booking].” The memo book then reads “0705 Transported to § 87(2)(b) EOT”. PO Sandberg marked each day from April 10, 2015 to May 7, 2016 as “LOD.”

As noted above, in *Potential Issues*, according to the 84th Precinct, Exposure Reports and Line of Duty Injury Reports were not prepared for PO Sandberg or PO Cardenio. However, according to the above-referenced AIDED reports for the officers and the UF-61 (Board Review 11) and

Arrest Report (Board Review 12) for § 87(2)(b) re-arrest, § 87(2)(b) spat on the officers and his saliva entered their mouths.

Captain Kenneth Perez of Patrol Borough Brooklyn North, who spoke with Sgt. Linda Dooner-Hornick of Brooklyn Court Section and then interviewed PO Sandberg and PO Cardenio at § 87(2)(b) after the incident, prepared a UF-49 in regards (Board Review 13). According to this document, § 87(2)(b) alleged to Sgt. Dooner-Hornick that PO Cardenio and PO Sandberg threw him to the ground outside of Brooklyn Central Booking and that PO Cardenio placed his hands around § 87(2)(b) neck and choked him. The UF-49 goes on to state that according to PO Sandberg and PO Cardenio, § 87(2)(b) spat on them through the partition inside of the RMP and refused to walk of his own power from the RMP into Brooklyn Central Booking. § 87(2)(b) then tripped PO Cardenio, who was holding onto him. PO Cardenio fell on top of § 87(2)(b) and “[braced] his fall with his hands on the chest of § 87(2)(b)

A Medical Treatment of Prisoner form, prepared after PO Cardenio and PO Sandberg allegedly tripped and choked § 87(2)(b) states that § 87(2)(b) “allegedly sustained scratches to his knees” and “pain to left shoulder” because he was allegedly “dragged down the ramp to BCB intake area by the escorting officers.” The reports states that § 87(2)(b) refused medical attention.

As noted above, because § 87(2)(b) did not complete HIPAA forms, the investigation was unable to obtain his Pre-Arrest Screening forms, Medical Records from § 87(2)(b), or any other medical records.

Images obtained from Google Maps Street View confirm that the rear entrance to Brooklyn Central Booking, where the officers brought § 87(2)(b) inside and allegedly used force against him, is a ramp, as described by the officers (Board Review 14 and 15).

Lastly, the arraignment history for § 87(2)(b) initial arrest (Board Review 16) states that prior to being transported from Brooklyn Central Booking to § 87(2)(b), § 87(2)(b) complained of § 87(2)(b) symptoms and leg pain.

§ 87(2)(g)
[REDACTED]

§ 87(2)(g) [Redacted text block]

§ 87(2)(g) [Redacted text block]

§ 87(2)(g) [Redacted text block]

It is therefore recommended that Allegations **D, E, F, G, and H** be closed as **unsubstantiated**.

Squad:

Investigator:	_____	_____	_____
	Signature	Print	Date
Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date